



## **DECISION**

**Complaint No.** : POS/4214/2025/Adv-M

**Name and address of the complainant** : Mr. Wajid Ali Khan, r/o House No. 103, Ground Floor, P.IB Colony, near Café Noor Hotel, Karachi.

**Name of the Agency Complained against** : Karachi Metropolitan Corporation

**Name & Designation of Investigating Officer** : Mir Hussain Ali  
Advisor-M

**Vetted by** :

**Subject** : DELAY IN HANDING OVER PHYSICAL POSSESSION OF SHOPS BOOKED IN EMPRESS MARKET, SADDAR, KARACHI.

### **Complaint:**

Mr. Wajid Ali Khan filed his online complaint on 11.6.2025 against Karachi Metropolitan Corporation for not handing over physical possession of shops allotted to him in lieu of shops No. 11, 12, 13, and 91 at Empress Market, Saddar, Karachi, which have been demolished. He therefore requested for the intervention of this Institution in the matter.

### **Proceedings:**

2. After being admitted for investigation u/s 10 of the Establishment of Office of Ombudsman of Sindh 1991, the complaint was forwarded to the Director Estate, Karachi Metropolitan Corporation for necessary action and report. In response, the Senior Director (Estate & Accommodation), Karachi Metropolitan Corporation, vide letter No. Sr.Dir/Estt/KMC/1059/2025 dated 8.10.2025 stated that in 2018 under the directives of the Supreme Court of Pakistan, around 3000 commercial shops constructed around parks and on footpaths were demolished. The Director further stated that the Karachi Metropolitan Corporation had made efforts to accommodate all the affectees, and as such the complainant was accommodated in Shahabuddin Market in Lines Area. He further stated that after dissolution of City District Government Karachi, the Karachi Development Authority became a separate entity and did not permit such arrangement of accommodating the affectees, and therefore possession could not be handed over. He also stated that under the Karachi Metropolitan Corporation Tenancy Laws, KMC can revoke the right of tenancy without any prior notice, and it is KMC's prerogative, as to how KMC will accommodate its affected tenants or terminate their tenancy.

### **Findings:**

3. On going through the above proceedings and on perusal of the complaint it is clear that Karachi Metropolitan Corporation in 2019 had made an effort to accommodate the complainant in Lines Area, which after dissolution of City District Government Karachi became KDA's domain and they did not agree to this arrangement. Further, the Karachi Metropolitan Corporation rightly points out that it is its prerogative to revoke the right of tenancy if it is not possible to continue with the tenancy. Further the accompaniments of the complaints reveal that only one shop No. 91 was let out to him by KMC in 1989.



The other three i.e. 11, 12, and 13 have been transferred in his name in 2018, when the shops were demolished, which undermines the genuineness of his claim and suggests that in connivance with Karachi Metropolitan Corporation officials this claim for three shops has been created through manipulation.

**Decision:**

4. Therefore, in view of the above findings, u/s 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act 1991, I hereby direct the Metropolitan Commissioner, Karachi Metropolitan Corporation as follows:

- i) Determine the genuineness of allotments of the Shops No. 11, 12, and 13 through its record and other means.
- ii) On the basis of action on (1) above, decide about the fate of the tenancy, whether it wants to revoke the same or provide an alternate arrangement, and take action accordingly.

“Given under my hand and seal of office”

**Sd/-**

(Muhammad Sohail Rajput)

Sitara-e-Imtiaz, PAS

OMBUDSMAN SINDH

Karachi, dated 08<sup>th</sup> January, 2026

